

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Conor O'Shea	Team: Squad #6	CCRB Case #: 201906147	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 06/30/2019 1:44 AM	Location of Incident: In front of § 87(2)(b)	Precinct: 48	18 Mo. SOL 12/30/2020	EO SOL 8/16/2021	
Date/Time CV Reported Sun, 06/30/2019 8:34 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/15/2019 10:59 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Wichers	16306	958169	048 PCT
2. POM Jonathan Gonzalez	00649	960603	048 PCT
3. LT Anderson Ortiz	00000	949424	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Bryan Ortiz	03482	945272	048 PCT
2. POM Mark Ricketts	07883	962053	048 PCT
3. POM Edin Bacovic	04993	960189	048 PCT
4. POM Dharlyn Vasquez	30173	955625	048 PCT
5. POF Lori Loperfeto	09855	960823	048 PCT
6. POM Steven Perez	23485	962681	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Anderson Ortiz	Abuse: Lieutenant Anderson Ortiz stopped § 87(2)(b)	
B.POM Robert Wichers	Abuse: Police Officer Robert Wichers stopped § 87(2)(b)	
C.POM Jonathan Gonzalez	Abuse: Police Officer Jonathan Gonzalez stopped § 87(2)(b)	
D.LT Anderson Ortiz	Force: Lieutenant Anderson Ortiz used physical force against § 87(2)(b)	
E.POM Jonathan Gonzalez	Force: Police Officer Jonathan Gonzalez used physical force against § 87(2)(b)	
F.POM Robert Wichers	Force: Police Officer Robert Wichers used physical force against § 87(2)(b)	

Case Summary

On June 30, 2019, Lieutenant Joaquin Disla of the 48th Precinct called the IAB Command Center and filed the following complaint on behalf of § 87(2)(b) who had just been arrested. This case was received at the CCRB on July 15, 2019.

§ 87(2)(g)

On July 16, 2019, a search of the DOC for NYC inmate lookup database revealed that § 87(2)(b) was incarcerated and facing pending criminal charges related to this incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Between July 17, 2019, and August 5, 2019, the Section 18-B office was called a total of five times. On three occasions, there was no answer and a please-call voicemail message was left. On July 23, 2019, and on August 5, 2019, however, a staffer named § 87(2)(b) confirmed that there were no Section 18-B attorneys listed as representing § 87(2)(b) in this case. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On August 5, 2019, the Bronx District Attorney's Office was called, and a receptionist identified Assistant District Attorney (ADA) Adam Thomas as the prosecutor handling § 87(2)(b)'s case. Between August 5, 2019, and August 12, 2019, ADA Thomas was called twice. On the first occasion, a voicemail message was left, but on the second occasion ADA Thomas identified § 87(2)(b)'s attorney as a private attorney named § 87(2)(b) for whom ADA Thomas did not have contact information. On August 12, 2019, a search of the DOC for NYC inmate lookup database revealed that § 87(2)(b) was still incarcerated.

On August 12, 2019, § 87(2)(b)'s criminal defense attorney, § 87(2)(b) was called. He confirmed that he was representing § 87(2)(b) in the open criminal case related to this incident and requested that this case be closed pending litigation. § 87(2)(g)

Squad No.: #06

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date